

no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

CAPITAL ONE N.A. v JOHN N. BARRETT, JR.
Case No. CL25-03751

Motion to Set Aside/Vacate Dismissal and Enter Judgment Pursuant to 664.6

TENTATIVE RULING:

Plaintiff's unopposed motion to set aside dismissal of the action and enter judgment pursuant to a stipulation between the parties is GRANTED.

Defendant JOHN N. BARRETT JR.'s first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. He performed by paying a total of \$303.19 pursuant to the stipulation and then defaulted.

Plaintiff caused the motion to set aside the dismissal and to enforce the stipulation to be personally served on Defendant on May 26, 2026.

The court finds that Defendant had notice of these proceedings to enforce the settlement and authorizes entry of judgment in the amount of \$3,978.00 and awards costs in the sum of \$358.61 for a total judgment of \$4336.61.

The lodged proposed judgment will be processed forthwith.

JPMORGAN CHASE BANK N. A. v JESUS VIVEROS
Case No. CL25-09768

Motion to Set Aside/Vacate Dismissal and Enter Judgment Pursuant to 664.6

TENTATIVE RULING:

Parties to appear. Defendant contends he made payments toward the stipulated amount of \$13,170.78 but neither party identifies what sums have been previously paid.

Plaintiff's motion to set aside dismissal of the action and enter judgment pursuant to a stipulation between the parties is GRANTED.

Defendant JESUS VIVEROS's opposition acknowledges the stipulation for a payment plan towards an outstanding debt, but contends he was unable to meet the terms of the stipulation due to severe financial hardship.

While the court appreciates Defendant's circumstances prevented him from performing the terms of the stipulation as he previously agreed, they do not establish a basis on which the court can decline to enforce the stipulation by declining to enter judgment. However, any enforcement of a judgment will be subject to legal limitations which ensure that individuals are not garnished or levied in a manner that prevents them from providing for their individual daily needs.

WILLIAM BRONSON v. TRICORBRAUN, INC.
Case No. CU23-00588

Plaintiff's Motion to Compel Defendant's Further Responses to Form Interrogatories, Special Interrogatories, Requests for Production

TENTATIVE RULING

Plaintiff WILLIAM BRONSON moves to compel Defendant TRICORBRAUN, INC. to further respond to his form interrogatories, set one, special interrogatories, set one, and requests for production, set one. Plaintiff's complaint in this matter alleges that he worked for Defendant on a commission basis but Defendant has not paid him all commissions due under the parties' contract.

Meet and Confer Efforts. The court first considers the adequacy of the parties' efforts to meet and confer to work these issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. Plaintiff's (current) counsel's attached declaration states that Plaintiff's (previous) counsel served the discovery requests at issue on July 25, 2024. (Declaration of Thomas C. Tagliarini in Support of Motion to Compel Further Responses ("Tagliarini Dec.") at ¶¶ 2-4.) At some point Defendant turned over to prior counsel a sample of requested records, from which Plaintiff cannot ascertain the information he needs. (*Id.* ¶¶ 6-9.) On October 11, 2025 Plaintiff's (current) counsel sent Defendant a letter asking for full and complete responses. (*Id.* at ¶ 11.) Defendant wrote back on October 31, 2025 promising a timely response (treating the October 11 letter as if it were the initial service of the discovery requests). (*Id.* at ¶ 12.) Defendant served responses on April 10, 2026, per a schedule stipulated to by the parties following an earlier motion to compel responses, but these responses consisted only of objections. (*Id.* at ¶¶ 18-19.) Plaintiff called Defendant about this on April 13, 2026. (*Id.* at ¶ 21.) At some point Defendant produced records pertaining to three of its forty-nine customers but these records did not contain all information Plaintiff sought. (*Id.* at ¶ 22.) The instant motion was filed May 27, 2026.